

Amendment No. 1 to HB2585

Farmer
Signature of Sponsor

AMEND Senate Bill No. 2621*

House Bill No. 2585

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 29-39-102, is amended by adding the following as a new subsection:

(o)

(1) Notwithstanding subdivision (a)(2) and subsections (b)-(e), the amount of noneconomic damages recoverable by a plaintiff must not exceed one million dollars (\$1,000,000) in a health care liability action under chapter 26 of this title, if the negligence arose directly and proximately from the provision of obstetric care to a pregnant or postpartum woman.

(2) As used in this subsection (o):

(A) "Obstetric care":

(i) Means medical, surgical, or clinical care provided by a licensed healthcare provider acting within the scope of obstetric practice that is directly and proximately related to the management of a pregnancy, labor, delivery, or postpartum recovery within the postpartum period; and

(ii) Does not include:

(a) Gynecologic care unrelated to the management of a pregnancy or delivery, including elective hysterectomy, sterilization procedures, or other gynecologic surgeries not

arising from a complication of the current pregnancy or delivery;

(b) Care provided by a healthcare provider acting outside the scope of obstetric practice, including, but not limited to, anesthesia services, general surgery, emergency medicine, radiology, or other specialty care, unless such care is rendered as an integral component of an obstetric procedure and under the direction of the attending obstetric provider;

(c) Care rendered for a condition or injury not causally related to the pregnancy or delivery, including treatment of traumatic injury, pre-existing conditions unrelated to the pregnancy, or illness unrelated to the pregnancy; or

(d) Care rendered after the expiration of the postpartum period;

(B) "Permanent physical injury":

(i) Means an anatomical or physiological impairment to the body that, to a reasonable degree of medical certainty, is expected to persist indefinitely and results in a measurable functional limitation; and

(ii) Does not include psychological conditions, psychiatric diagnoses, or emotional distress, whether or not diagnosed as permanent;

(C) "Postpartum woman":

(i) Means a woman within forty-two (42) days following the termination of a pregnancy, whether by live birth, stillbirth, or other

termination, at the time the negligent act or omission occurred;

and

(ii) Does not include a woman whose pregnancy terminated more than forty-two (42) days prior to the negligent act or omission, regardless of any ongoing postpartum condition or treatment; and

(D) "Pregnant woman" means a woman carrying a viable pregnancy at the time the negligent act or omission occurred.

(3) A plaintiff seeking to recover noneconomic damages under this subsection (o) bears the burden of establishing by a preponderance of the evidence that:

(A) The plaintiff was a pregnant or postpartum woman at the time of the negligent act or omission;

(B) The negligence arose directly and proximately from the provision of obstetric care; and

(C) The plaintiff sustained death or permanent physical injury as a direct and proximate result of such negligence.

(4) This subsection (o) does not:

(A) Displace or modify any procedural requirement, notice provision, certificate of good faith requirement, or other provision of chapter 26 of this title, or any other provision of this section other than the noneconomic damages limitation set forth in subsection (a). If this subsection (o) conflicts solely with the amount of the noneconomic damages limitation in subsection (a), then this subsection (o) controls; or

(B) Authorize a cause of action against a licensed physician who refuses to perform an abortion, as defined in § 39-15-213.

SECTION 2. This act takes effect upon becoming a law, the public welfare requiring it, and applies to causes of action accruing on or after such date.